Weichert REALTORS® | Truhomes

BUYER REPRESENTATION AGREEMENT

1. **The Parties.** This Buyer Representation Agreement ("Agreement") made on _____, is by and between:

Buyer: _____("Buyer") with a mailing address of _____, and

Broker: _____("Agent") of _____("Broker") with a mailing address of _____.

Collectively, the Buyer, Agent and Broker shall be referred to as the "Parties".

If for any reason the Agent is not able to fulfill his/her duties under the terms and conditions of this Agreement, another agent from Broker may be appointed during the period of this Agreement. Any person or entity with whom the Buyer enters into a contractual agreement for the purchase of real estate shall be referred to as a "Seller" in this Agreement.

2. **Services Provided.** Buyer hereby agrees to hire the Agency on an: (check one)

□ - Exclusive Basis. To accept the terms of this Agreement and communicate with the Broker on an exclusive basis in an effort to assist the Buyer in acquiring real property through either purchase, option, exchange, trade, or lease. The Brokerage Commission, under an exclusive basis, is due and payable even under the circumstance the Buyer acquires real property on his/her own without the assistance or involvement of the Broker or with the assistance of another Real Estate Brokerage Firm.

□ - Non-Exclusive Basis. To accept the terms of this Agreement and communicate with the Broker on a non-exclusive basis in an effort to assist the Buyer in acquiring real property through either purchase, option, exchange, trade, or lease. The Brokerage Commission, under a non-exclusive basis, is due and payable only if the Buyer acquires real property with the assistance and involvement of the Agency. In the event the Buyer purchases any real property that has not been introduced to the Buyer by Broker, the Broker shall not be due a Commission. Buyer is a party to _____ (insert number) active, non-exclusive buyer-broker representation agreements.

3. **Broker's Efforts.** Broker will exercise good faith efforts to: (a) locate and present suitable properties to Buyer; (b) tour and prepare detailed analysis of specific properties, per Buyer's request; © help Buyer prepare, negotiate, and secure a contract to purchase one or more properties; (d) and cooperate with any real estate licensee working with the seller, if any, to facilitate and complete Buyer's purchase of the property.

4. **Financial Records.** Buyer agrees to provide financial information to the Agent as may be required by a Seller when submitting an offer to purchase property. The buyer recognizes that ultimately it is his/her sole responsibility to verify any and all information provided to the Agent. Furthermore, Buyer agrees to indemnify and hold the Agent/ Broker harmless from any and all loss, cost, expense, damage or claim arising out of this Agreement, including without limitation, liability resulting from incomplete or inaccurate information provided to Agent/Broker.

5. **Period of Agreement.** This Agreement shall start on _____ ("Effective Date") and end on _____ at 12:00 midnight ("Representation Period"), unless the expiration date is extended in writing or in the event the Buyer has submitted an offer to purchase real property with the assistance of the Broker, the parties agree the above expiration date shall be extended until such time that the transaction closes or until such time as a contract of sale fails to be performed either by its terms or because of the default of the Buyer.

6. **Compensation.** In the event real property is acquired under Section 2 of this Agreement, the Buyer agrees to compensate the Broker ("Service Fee") under the following terms and conditions and that payment shall be made to the Broker and not the Agent under any circumstances:

Service Fee. _____% of the gross purchase price or a flat fee of $ _____.

Retainer Fee. This Agreement shall have: (check one)

□No retainer fee.

□ A retainer fee in the amount of $_____that is non-refundable to obtain the Broker's services under this Agreement ("Retainer Fee"). If a Service Fee is paid, the Retainer Fee shall be deducted from the Service Fee as defined above. The Service Fee is due and payable at closing.

Seller Payment Through Offer. Broker shall attempt to collect some or all of the Service Fee from the Seller through the Purchase Offer submitted by Agent on behalf of the Buyer. If Buyer purchases property where the compensation offered by the Seller to the Broker is less than the Service Fee defined in the above Section, Buyer will be responsible to pay the difference between the Service Fee and the compensation offered by Seller. Agent will timely inform Buyer if the compensation offered by Seller or Listing Broker is less than the Service Fee. The Service Fee is due and payable only if, as and when title passes to the Buyer except for the default of the Buyer.

The amount or rate of the Service Fee is not fixed by law. The Service Fee is set by each Broker individually and is negotiable between the Buyer and the Broker. Broker shall not receive compensation from any source that exceeds the amount in this agreement unless the Broker is acting in a Dual Agent capacity where it represents both the Seller and Buyer in the same transaction in which case the amount of the Service Fee to be received by the Broker shall be disclosed to the Buyer.

7. **Agency Disclosure.** Buyer recognizes that, under this Agreement, an agency relationship has been established between the Buyer, the Broker and the Agent licensed with the Broker.

8. **Disclosed Dual Agency.** The Broker may be required to act as the only licensee involved between the Buyer and Seller to facilitate the transaction between the parties. Under such circumstances, the Broker shall disclose to the Buyer its intention to act as a disclosed dual agent or similar role. If the Buyer consents to the Agent acting in such a role, the Buyer agrees to allow the Broker to collect additional compensation from the Seller or other parties. While performing this role, the Agent agrees to conduct itself in a manner that does not adversely affect the Buyer or Seller in any way, including, but not limited to disclosing any type of financial information that would negatively affect the other party. The parties acknowledge that the Buyer has been presented with a New York State Agency Disclosure Form which further defines the concept of Disclosed Dual Agency.

9. **Disclaimer.** The Agent is not an expert in the matters of law, Federal or State tax codes, financing, surveying, engineering, architectural, structural, environmental and other physical conditions or non-physical details of real property. In addition, the Agent has advised and recommended the Buyer seek expert assistance for advice on such matters. Agent/Broker makes no warranty or guarantee concerning the services of such experts or their products, the condition of property, the absence of defects therein or the suitability of such property for Buyer's purposes.

10. **Arbitration.** All claims, disputes or other matters in question between Broker and Buyer arising out of or relating to this Agreement shall be determined by arbitration before the American Arbitration Association in New York, New York, pursuant to its Commercial Arbitration Rules. The award rendered by the arbitrator shall be final and judgment may be entered upon it in accordance with applicable law in any court of competent jurisdiction. THIS ARBITRATION SHALL BE IN LIEU OF ANY CIVIL LITIGATION IN ANY COURT AND IN LIEU OF ANY TRIAL BY JURY.

11. **Fair Housing.** Agent/Broker agrees and adheres to the standard of showing real property made available to the Buyer in full compliance with Federal, State and Local discrimination laws.

12. **Other Clients.** Buyer is aware and acknowledges that the Agent and/or Broker may have other clients who will be viewing the same properties with the intention of purchasing; Agent shall have the obligation to inform Buyer that another offer has or is being submitted by the same Agent on behalf of another Buyer.

13. **Binding Effect.** This Agreement shall be binding upon the Buyer's successors, assigns, heirs, and beneficiaries.

14. **Legal Signature.** This Agreement may be executed and delivered by any party herein by sending a facsimile of the signature or by a legally recognized digital or electronic signature. Such legal signature shall be binding on the party so executing it upon receipt of signature by the other party.

15. **Governing Law.** This Agreement shall be governed under the laws in the State of New York.

16. **Additional Terms and Conditions.**_____

_____

17. **Entire Agreement.** This Agreement constitutes the entire agreement between the Buyer and Broker and supersedes all prior discussions, negotiations and agreements between the Buyer and Broker whether oral or written. Any understanding, agreement or promise not specified herein shall not bind Buyer or Broker, whether express or implied.

Buyers Signature: _____ Date: _____

Print Name: _____

Buyers Signature: _____ Date: _____

Print Name: _____

Broker/Authorized Representatives Signature: _____

Print Name: _____

Properties to be Shown (Address):

_____

_____, _____, _____

Address **City, State** **Zip**

_____, _____, _____

Address **City, State** **Zip**

_____, _____, _____

Address **City, State** **Zip**

(Use additional pages if required)